

Michigan Department of Environmental Quality
Air Quality Division

State Registration Number
N3862

**RENEWABLE OPERATING PERMIT
STAFF REPORT**

ROP Number
MI-ROP-N3862-2012

WEXFORD COUNTY LANDFILL

SRN: N3862

Located at

990 US 131 North, Manton, Wexford County, Michigan 49663

Permit Number: MI-ROP-N3862-2012

Staff Report Date: May 21, 2012

This Staff Report is published in accordance with Sections 5506 and 5511 of Part 55, Air Pollution Control, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (Act 451). Specifically, Rule 214(1) requires that the Michigan Department of Environmental Quality (MDEQ), Air Quality Division (AQD), prepare a report that sets forth the factual basis for the terms and conditions of the Renewable Operating Permit (ROP).

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May 21, 2012 - STAFF REPORT

Purpose

Major stationary sources of air pollutants, and some non-major sources, are required to obtain and operate in compliance with a ROP pursuant to Title V of the federal Clean Air Act of 1990 and Michigan's Administrative Rules for air pollution control pursuant to Section 5506(1) of Act 451. Sources subject to the ROP program are defined by criteria in Rule 211(1). The ROP is intended to simplify and clarify a stationary source's applicable requirements and compliance with them by consolidating all state and federal air quality requirements into one document.

This report, as required by Rule 214(1), sets forth the applicable requirements and factual basis for the draft permit terms and conditions including citations of the underlying applicable requirements, an explanation of any equivalent requirements included in the draft permit pursuant to Rule 212(5), and any determination made pursuant to Rule 213(6)(a)(ii) regarding requirements that are not applicable to the stationary source.

General Information

Stationary Source Mailing Address:	Wexford County Landfill 990 US 131 North Manton, Michigan 49663
Source Registration Number (SRN):	N3862
North American Industry Classification System (NAICS) Code:	562212
Number of Stationary Source Sections:	1
Is Application for a Renewal or Initial Issuance?	Renewal
Application Number:	201100154
Responsible Official:	Mr. Edward G. Ascione, President 231-258-9030
AQD Contact:	Mr. Rob Dickman, Environmental Quality Analyst 231-876-4412
Date Permit Application Received:	December 16, 2011
Date Application Was Administratively Complete:	December 16, 2011
Is Application Shield In Effect?	Yes
Date Public Comment Begins:	May 21, 2012
Deadline for Public Comment:	June 20, 2012

Source Description

Wexford County Landfill is a municipal solid waste landfill also accepting non-hazardous special waste, friable and non-friable asbestos, and construction and demolition debris for disposal. The landfill has maximum design capacity of 3.45 million megagrams. The landfill, and leachate and collection system are exempt from the requirement to obtain a permit to install pursuant to R 336.1285(aa). A contaminated groundwater remediation system utilizing aeration ponds is in place and operating. Emissions from the pond are exempt from the requirement to obtain a Permit to Install pursuant to Rule 290. The Renewable Operating Permit contains a flexible group for emission units subject to the requirements of Rule 290.

The following table lists stationary source emission information as reported to the Michigan Air Emissions Reporting System (MAERS) in the **2010** submittal.

TOTAL STATIONARY SOURCE EMISSIONS

Pollutant	Tons per Year
Carbon Monoxide (CO)	
Lead (Pb)	
Nitrogen Oxides (NO _x)	
Particulate Matter (PM)	
Sulfur Dioxide (SO ₂)	
Volatile Organic Compounds (VOCs)	3.78
Non-Methane Organic Compounds (NMOC)	5.4
Individual Hazardous Air Pollutants (HAPs) **	
Total Hazardous Air Pollutants (HAPs)	

**As listed pursuant to Section 112(b) of the federal Clean Air Act.

In addition to the pollutants listed above that have been reported in MAERS, the potential to emit of Greenhouse Gases in tons per year of CO₂e is less than 100,000. CO₂e is a calculation of the combined global warming potentials of six Greenhouse Gases (carbon dioxide, methane, nitrous oxide, hydrofluorocarbons, perfluorocarbons, and sulfur hexafluoride).

See Parts C and D in the draft ROP for summary tables of all processes at the stationary source that are subject to process-specific emission limits or standards.

Regulatory Analysis

The following is a general description and history of the source. Any determinations of regulatory non-applicability for this source are explained below in the Non-Applicable Requirement part of the Staff Report and identified in Part E of the ROP.

The stationary source is located in Wexford County, which is currently designated by the U.S. Environmental Protection Agency (USEPA) as attainment/unclassified for all criteria pollutants.

The stationary source is subject to Title 40 of the Code of Federal Regulations (CFR), Part 70, because it is subject to the New Source Performance Standards for Municipal Solid Waste Landfills (40 CFR, Part 60, Subpart WWW)

No emissions units at the stationary source are currently subject to the Prevention of Significant Deterioration (PSD) regulations of Part 18, Prevention of Significant Deterioration of Air Quality of Act 451 or 40 CFR, Part 52.21 because the process equipment was constructed/installed prior to June 19, 1978, the promulgation date of the PSD regulations.

At this time, there are no GHG applicable requirements to include in the ROP. The mandatory Greenhouse Gas Reporting Rule under 40 CFR 98 is not an ROP applicable requirement and is not included in the ROP.

Although the stationary source was installed after August 15, 1967, this equipment was exempt from New Source Review (NSR) permitting requirements at the time it was installed. As a result, this equipment is considered "grandfathered" and is not subject to NSR permitting requirements. However, modifications of this equipment may be subject to NSR permitting requirements.

The stationary source is subject to the New Source Performance Standards for Municipal Solid Waste Landfills promulgated in 40 CFR, Part 60, Subparts A and WWW.

The monitoring conditions contained in the ROP are necessary to demonstrate compliance with all applicable requirements and are consistent with the "Procedure for Evaluating Periodic Monitoring Submittals."

No emission units are subject to the federal Compliance Assurance Monitoring rule under 40 CFR, Part 64, because all emission units at the stationary source either do not have a control device or those with a control device do not have potential pre-control emissions over the major source thresholds.

Please refer to Parts B, C and D in the draft ROP for detailed regulatory citations for the stationary source. Part A contains regulatory citations for general conditions.

Source-wide Permit to Install (PTI)

Rule 214a requires the issuance of a Source-wide PTI within the ROP for conditions established pursuant to Rule 201. All terms and conditions that were initially established in a PTI are identified with a footnote designation in the integrated ROP/PTI document.

The following table lists all individual PTIs that were incorporated into previous ROPs. PTIs issued after the effective date of ROP No. MI-ROP-N3862-2007 are identified in Appendix 6 of the ROP.

PTI Number			
NA			

Streamlined/Subsumed Requirements

This permit does not include any streamlined/subsumed requirements pursuant to Rules 213(2) and 213(6).

Non-applicable Requirements

Part E of the ROP lists requirements that are not applicable to this source as determined by the AQD, if any were proposed in the application. These determinations are incorporated into the permit shield provision set forth in Part A (General Conditions 26 through 29) of the draft ROP pursuant to Rule 213(6)(a)(ii).

Processes in Application Not Identified in Draft ROP

There were no processes listed in the ROP application as exempt devices under Rule 212(4). Exempt devices are not subject to any process-specific emission limits or standards in any applicable requirement.

Draft ROP Terms/Conditions Not Agreed to by Applicant

This permit does not contain any terms and/or conditions that the AQD and the applicant did not agree upon pursuant to Rule 214(2).

Compliance Status

The AQD finds that the stationary source is expected to be in compliance with all applicable requirements as of the effective date of this ROP.

Action taken by the DEQ

The AQD proposes to approve this permit. A final decision on the ROP will not be made until the public and affected states have had an opportunity to comment on the AQD's proposed action and draft permit. In addition, the U.S. Environmental Protection Agency (USEPA) is allowed up to 45 days to review the draft permit and related material. The AQD is not required to accept recommendations that are not based on applicable requirements. The delegated decision maker for the AQD is Janis Denman, Cadillac District Supervisor. The final determination for ROP approval/disapproval will be based on the contents of the permit application, a judgment that the stationary source will be able to comply with applicable emission limits and other terms and conditions, and resolution of any objections by the USEPA.

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July 2, 2012 STAFF REPORT ADDENDUM

MI-ROP-N3862-2012

Purpose

A Staff Report dated May 21, 2012, was developed in order to set forth the applicable requirements and factual basis for the draft Renewable Operating Permit (ROP) terms and conditions as required by R 336.1214(1). The purpose of this Staff Report Addendum is to summarize any significant comments received on the draft ROP during the 30-day public comment period as described in R 336.1214(3). In addition, this addendum describes any changes to the draft ROP resulting from these pertinent comments.

General Information

Responsible Official:	Edward G. Ascione, President 231-258-9030
AQD Contact:	Rob Dickman, Environmental Quality Analyst 231-876-4412

Summary of Pertinent Comments

No pertinent comments were received during the 30-day public comment period. However, AQD staff noted that there was no previous Permit to Install issued to this facility. Therefore, the references to the Source Wide Permit to Install and corresponding footnotes located within the emission unit tables were removed.